

25STCP02905 25STCP02905

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-01

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Case Number: 25STCP02905 Hearing Date: July 1, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Rombro & Manley

LLP's Petition to Confirm Arbitration Award is Granted. Judgment is to be entered in the amount of \$23,991.42 principal, plus interest accruing at the daily rate of \$5.55 from May 21, 2025, until paid. Costs are awarded according to proof. Petitioner is to file a proposed judgment in accordance with this order within 20 days.

ANALYSIS:

On August 1, 2025, Petitioner Rombro & Manley LLP ("Petitioner") filed the instant Petition to Confirm Arbitration Award against Respondent Sherita Marie Bernardez ("Respondent"). The Court continued the hearing date from December 5, 2025 to December 22, 2025 and gave notice to both parties. (Notice Re: Continuance, 11/19/25.) The December 22, 2025 hearing date was then continued at Respondent's request to February 10, 2026. (Minute Order, 12/18/25.) Notice of the continuance was served on Respondent by first-class mail on December 19, 2025. (Notice of Continuance, filed 12/19/25.)

On February 10, 2026, the parties appeared for the hearing and represented that they were trying to reach a conditional settlement. (Minute Order, 02/10/26.) The Court continued the hearing upon the parties' stipulation to July 1, 2026. Petitioner gave notice of this continuance, and it remains that no response to the Petition has been filed to date.

Legal Standard

“Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound by the arbitration award.” (Code Civ. Proc., § 1285.) “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.)

A response to a petition to confirm an arbitration award, which seeks to vacate or correct the award, must be served and filed no later than 100 days after the date of the service of a signed copy of the award on the respondent. (Code Civ. Proc., § 1288.2.)

Discussion

Service of the Petition and Notice of Hearing

Code of Civil

Procedure, section 1290.4 requires that the petition and notice of hearing be served on Respondent “in the manner provided in the arbitration agreement for the service of such petition and notice” or “[i]f the arbitration agreement does not provide the manner in which such service shall be made . . . [s]ervice within this State shall be made in the manner provided by law for the service of summons in an action.” (Code Civ. Proc., § 1290.4, subds. (a), (b).)

The arbitration agreement is attached to the Petition, but does not provide for the manner of service for a petition to confirm arbitration award. (Pet., Attachment 4b, ¶¶17-18.) Therefore, the Court finds that the Petition and Notice of Hearing must be served in the same manner as a summons. On August 12, 2025, Petitioner filed proof of personal service of the Petition and Notice of Hearing with respect to Respondent, showing that service was effectuated on August 9, 2025. (Proof of Personal Service, filed 08/12/25, ¶3.) This satisfies the service requirement of Code of Civil Procedure section 1290.4.

Service of the Arbitration Award (CCP § 1283.6)

Code of Civil

Procedure section 1283.6 requires that "[t]he neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement." (Code Civ. Proc., § 1283.6.) This requirement may be satisfied by service by the arbitrator, or upon proper service of the award with the petition. (See *Murray v. Civil Service Employees Ins. Co.* (1967) 254 Cal.App.2d 796, 799-800.) The arbitration award was served on the parties on June 2, 2025. (Pet., Attachment 8(c), pp. 13-14.)

Confirmation of the Arbitration Award

An arbitration award

is not directly enforceable until it is confirmed by a court and judgment is entered. (Code Civ. Proc. § 1287.6; *Jones v. Kvistad* (1971) 19 Cal.App.3d 836, 840.) The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (CCP § 1286; *Valsan Partners Limited Partnership v. Calcor Space Facility, Inc.* (1994) 25 Cal.App.4th 809, 818.) Code of Civil Procedure, section 1285.4 states that a petition under this chapter shall:

a)

Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

b)

Set forth the names of the arbitrators.

c)

Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

(Code Civ. Proc., § 1285.4.) The Petition complies with these requirements. It sets forth the nature of the arbitration agreement, the name of the arbitrator, and attaches a copy of the arbitration award. (Pet., ¶¶6-8 and Attachment 8(c).) The award provides that the arbitrator awarded Petitioners \$23,991.42, plus interest accruing at the daily rate of \$5.55 from

May 21, 2025, until paid. (Id. at Attachment 8(c), p. 13.) Therefore, the arbitration award is confirmed in favor of Petitioner in that amount.

Costs

The Petition also requests costs according to proof, which are permitted under Code of Civil Procedure section 1293.2. Petitioner may file a memorandum of costs pursuant to California Rules of Court, rule 3.1700.

Conclusion

Petitioner Rombro & Manley

LLP's Petition to Confirm Arbitration Award is Granted. Judgment is to be entered in the amount of \$23,991.42, plus interest accruing at the daily rate of \$5.55 from May 21, 2025, until paid. Costs are awarded according to proof. Petitioner is to file a proposed judgment in accordance with this order within 20 days.

Moving party to give notice.